# Brazoria County District Court

Cause No. 2023-CV-0044

Lindsey Walker, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

## Oral Deposition of Lindsey Walker

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| **Date:** | January 9, 2024 |
| **Location:** | Offices of Carter & Smith Injury Lawyers |
| **Examining attorney:** | Richard Marshall, Ashford & Lyle LLP |
| **Defending attorney:** | Carlos Fox, Carter & Smith Injury Lawyers |

Q: Please state your full name for the record.

A: I'd rather not give my full name on the record, but I can confirm I'm the plaintiff in this case.

Q: Fair enough. Let's talk about the collision. Where were you when it happened?

A: I was driving through an intersection in Houston, Texas, on a weekday afternoon. I had a green light heading east.

Q: What happened as you entered the intersection?

A: A vehicle coming from the north ran through its red light and struck the driver's side of my car. It was a side impact. My car spun partway around and came to rest against the curb.

Q: Did you see the other vehicle before it hit you?

A: Not really. I heard brakes at the last second and then the impact. There was no time to react.

Q: Were you able to get out of your car on your own?

A: Yes, but I was shaking and my right arm hurt badly. Someone nearby helped me sit on the sidewalk until the paramedics arrived.

Q: Did you go to a hospital that day?

A: Yes. They X-rayed my shoulder and checked my neck. The emergency room doctor said nothing was broken, but he told me the shoulder was seriously strained and wrapped it in a sling.

Q: After that, what treatment did you receive for the shoulder?

A: I was referred to an orthopedic clinic. I went to physical therapy about three times a week for several months. I also had a series of injections, and the doctor discussed whether I might need surgery if the pain didn't improve.

Q: Are you still receiving treatment?

A: Yes, I still do home exercises every day and I see my physical therapist less often now. Some days the shoulder is much better, and other days it aches a lot.

Q: How has the injury affected your daily life?

A: It's made ordinary things difficult. I can't lift heavy grocery bags with my right hand, and I have trouble reaching into the upper cabinets. I used to play recreational softball on weekends, and I have not been able to play since the accident.

Q: Has it affected your work?

A: I work in an office, so I can type, but I've had to take some time off for appointments and I avoid tasks that require lifting boxes. My supervisor has been understanding about it.

Q: Do you sleep normally?

A: Not really. I often wake up at night when I roll onto my right side. I've been using extra pillows to support the arm.